

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch

Civil Action No. 12-cv-02735-RPM

PAUL BAUMAN,

Plaintiff,

v.

STAN BISHOP, Teller County Undersheriff,
JOSH WEATHERILL, Teller County Sheriff's Office Deputy and Member of Teller County
Emergency Response Team, and
NICK HARTBAUER, Teller County Sheriff's Office Deputy and Member of Teller County
Emergency Response Team,

Defendants.

VERDICT

Understanding that the Court has ruled that defendants Josh Weatherill and Nick Hartbauer violated the Fourth Amendment by their entry and removal of the plaintiff Paul Bauman from the van, we the jury are all agreed on the following answers to the Court's questions:

1. Did Mr. Bauman prove by a preponderance of the evidence
that defendants Josh Weatherill and Nick Hartbauer used excessive force,
injuring the plaintiff in removing him from the van and restraining his
freedom of movement?

No
(Yes or No)

2. Did Mr. Bauman prove by a preponderance of the evidence that defendant Stan Bishop is liable for the conduct of defendants Weatherill and Hartbauer because of his instructions to them and/or a failure to intervene to protect the plaintiff from their conduct?

Yes

(Yes or No)

3. Did the plaintiff prove by a preponderance of the evidence that he sustained damages caused by the violations of the Fourth Amendment?

Yes

(Yes or No)

If your answer is yes, state the amount of damages the plaintiff has proven. If no damages were proven, then enter one dollar as nominal damage.

\$ 72,583

DATED: May 22, 2015


Presiding Juror